

SENATE No. 233

The Commonwealth of Massachusetts

PRESENTED BY:

Paul R. Feeney

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act expanding hoisting examination opportunities for Spanish language speakers.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Paul R. Feeney</i>	<i>Bristol and Norfolk</i>	
<i>John F. Keenan</i>	<i>Norfolk and Plymouth</i>	<i>6/27/2025</i>
<i>Pavel M. Payano</i>	<i>First Essex</i>	<i>9/24/2025</i>

SENATE No. 233

By Mr. Feeney, a petition (accompanied by bill, Senate, No. 233) of Paul R. Feeney for legislation to expand hoisting examination opportunities for spanish language speakers. Consumer Protection and Professional Licensure.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 168 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act expanding hoisting examination opportunities for Spanish language speakers.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 146 of the General Laws, as appearing in the 2022 official edition, is hereby
2 amended by striking out section 65 and inserting in place thereof the following section:-

3 Section 65. (a) Whoever desires to act as an operator of hoisting machinery shall apply to
4 the division of occupational licensure for a license. If the criteria for licensure established by the
5 commissioner of the division of occupational licensure pursuant to section fifty-three are met by
6 the applicant, such applicant shall be required to pass a written or practical examination, or both,
7 in accordance with the standards set in regulations promulgated under the provisions of said
8 section fifty-three. Any operator of hoisting machinery whose license is revoked, and any person
9 who is penalized under the provisions of section fifty-four A, shall be required to pass both a
10 written and practical examination before he may be issued a subsequent license. The passing of

11 the applicable examination shall entitle the applicant to a license to operate hoisting machinery in
12 the category or categories for which he has applied and been examined. Each license issued shall
13 contain a photograph of the licensee.

14 (b) The division of occupational licensure shall make both written and practical
15 examinations available in the languages of English and Spanish to operator of hoisting
16 machinery applicants if the criteria for licensure established by the commissioner of the division
17 of occupational licensure pursuant to section fifty-three are met by the applicant.